

West Bengal State Electricity Distribution Co. Ltd.
(A Govt. of West Bengal Enterprise)
vidyut Bhavan : Bidhannagar : Kolkata - 700 091



WBSEDL

OFFICE ORDER NO. 159

DATED : 11.08.2009

Rule-34 of Office Order No. 89 dated 16.02.2009 i.e. West Bengal State Electricity Distribution Company Limited (Revision of Pay and Allowances) Rules, 2009 is, hereby, substituted with the following :

Pensionary benefits in respect of employees covered under WBSEB Employees' (Death-cum-Retirement Benefit) Regulations, 1985 who retired / died prior to 01.01.2006 as well as those who retired / died / will retire on and after 01.01.2006 will be revised in the following manner:

(1) A. Pre 01.01.06 Pensioners :

- (i) The minimum Basic Pension is enhanced from Rs. 1,300/- (rupees one thousand three hundred) only to Rs. 3,300/- (three thousand three hundred) only per month.
- (ii) The existing Basic Pension as on 01.01.06 in respect of all past pensioners (pre 01.01.2006 retirees) shall be multiplied by 1.86 and the product shall be enhanced by 40% of Basic Pension subject to that the pension thus arrived at shall in no case be less than Rs. 3,300/- (three thousand three hundred) only per month.
- (iii) Fifty (50) percent of minimum pay in the Pay Band plus Grade Pay in the revised Pay Structure corresponding to the pre-revised Pay Scale from which the pensioner had retired.
- (iv) The consolidated pension applicable for the pensioner shall be the highest amount of (i), (ii) and (iii) above.
- (v) The amount so arrived at (iv) will be regarded as consolidated pension notionally with effect from 01.01.2006 and actual effect from 01.04.2007.
- (vi) During the period from 01.01.06 to 31.03.07, such pensioners will draw pension as they were in receipt of as on 31.12.05.

B. Pre 01.01.06 Family Pensioners :

- (i) The minimum family pension is enhanced from Rs. 1,300/- (rupees one thousand three hundred) only to Rs. 3,300/- (three thousand three hundred) only per month.

- (ii) The existing family pension in respect of all past family pensioners (pre 01.01.2006) shall be multiplied by 1.86 and the product shall be enhanced by 40% of basic pension subject to that the pension thus arrived at shall in no case be less than Rs.3,300/- (rupees three thousand three hundred) only.
- (iii) The amount so arrived at will be regarded as consolidated family pension notionally with effect from 01.01.2006 and actual effect from 01.04.2007. During the period from 01.01.06 to 31.03.07 such pensioners will draw pension as they were in receipt of as on 31.12.05.
- (iv) However, existing provision for calculation of family pension at enhanced rate for a specific period shall continue in accordance with Regulation-18 of WBSEB Employees' (Death-cum-Retirement Benefit) Regulations, 1985.

(2) For Post 01.01.06 Pensioners / Family Pensioners :

- (i) For Employees who have rendered a minimum of 33 years' qualifying service, pension shall be paid at 50% of the last Pay in the Pay Band plus Grade Pay drawn / due on account of revision.

For employees who at the time of retirement / death have rendered minimum qualifying service for entitlement of pension or more but less than 33 years, proportionate reduction shall be made while calculating the amount of pension.

- (ii) The existing minimum amount of monthly pension / family pension is enhanced from Rs.1,300/- (rupees one thousand three hundred) only to Rs.3,300/- (rupees three thousand three hundred) only per month.

Pension / Family Pension shall be higher between (i) and (ii) above.

- (iii) The existing ceiling of maximum amount of monthly pension / family pension is dispensed with.

For family pensioners, the family pension shall be calculated @ 30% of pay in Pay Band and Grade Pay drawn last actually or notionally.

However, existing provision for calculation of family pension at enhanced rate for a specific period shall continue in accordance with Regulation-18 of WBSEB Employees' (Death-cum-Retirement Benefit) Regulations, 1985.

The amount so arrived at will be regarded as consolidated pension / family pension notionally with effect from 01.01.2006 and actual effect from 01.04.2007.

**Regularisation of the cases of pensioners / family pensioners
during the period from 01.01.2006 to 31.03.2007**

Employees who retired / voluntarily retired / died during the period from 01.01.2006 to 31.03.2007 are also entitled to have their pensionary benefits revised notionally in terms of WBSEDCL (Revision of Pay and Allowances) Rules, 2009 for the period prior to 01.04.2007. They shall not get any arrears representing the difference between revised pension and existing pension for the period upto 31.03.2007. They shall continue to draw the existing amount of pension which was fixed without taking into account the benefit of notional fixation of pay upto 31.03.2007. They shall get actual payment of revised pensionary benefits, i.e. pension and family pension arrived at on the basis of emolument allowed notionally, only from 01.04.07. In their cases pensionary benefits shall be calculated on the basis of notional pay fixed in accordance with Office Order No. 89 dated 16.02.2009 i.e. West Bengal State Electricity Distribution Company Limited (Revision of Pay & Allowances) Rules, 2009 and also on the basis of certificate of notional emoluments (in lieu of Pay Certificate) to be issued by the appropriate authority on the date of retirement / death based on initial notional pay in relaxation of normal rules.

Voluntarily retired employee-pensioners shall continue to be entitled to weightage towards qualifying service, if admissible, in accordance with Regulation-9 of WBSEB Employees' (Death- cum-Retirement Benefit) Regulations, 1985.

(3) Dearness Relief:

Consequent upon revision of Pensionary Benefits as stated hereinabove Dearness Relief to the Pensioners / Family Pensioners shall be paid according to revised rates as indicated hereinbelow:

<u>Date from which payable</u>	<u>Rate of Dearness Relief per month</u>
01.04.2007	6%
01.07.2007	9%
01.01.2008	12%
01.07.2008	16%
01.01.2009	22%

However, no arrear on account of revision of pensionary benefits of the Pensioners / Family Pensioners shall be admissible for the period from 01.01.06 to 31.03.07 in so far as Dearness Relief is concerned.

Henceforth, Dearness Relief will be admissible to the Pensioners / Family Pensioners of the Company at such rate and from such date as may be notified by the Central Government time to time.

Other provisions governing grant of relief to pensioners not mentioned in this Order, such as regulation of relief during re-employment, regulation of relief where more than one pension is drawn etc., will remain unchanged.

(4) Retiring / Death Gratuity :

Employees who retired / voluntarily retired / died during the period from 01/04/07 to 31/03/09 will be entitled to retiring / death gratuity consequent upon Revision of Pay & Allowances subject to maximum ceiling of Rs. 2.5 Lakh. Those who have drawn retiring gratuity on the basis of Un-Revised Pay & Allowances will also be eligible for payment of arrear amount, if admissible on the basis of Revised Pay & Allowances.

Voluntarily retired employee-pensioners shall continue to be entitled to weightage towards qualifying service, if admissible, in accordance with Regulation-9 of WBSEB Employees' (Death-cum-Retirement Benefit) Regulations, 1985.

For employees who will retire / voluntarily retire / may die on or after 01.04.09 the maximum sum of Gratuity is revised / enhanced to Rs.3.5 Lakh as indicated in Rule-35 of West Bengal State Electricity Distribution Company Limited (Revision of Pay and Allowances) Rules, 2009.

(5) Medical Allowance :

Medical Allowance of the pensioners / family pensioners, as the case may be, is enhanced from Rs.100/- (rupees one hundred) only to Rs. 200/- (rupees two hundred) only per month with effect from 01.04.2009.

(6) Arrear Pension / Family Pension :

Arrear Pension and/or Gratuity for the period from 01.04.07 to 31.03.09 will be paid in the financial year 2009-2010 in two equal installments. There will be no arrear payment for the period from 01.01.06 to 31.03.07.

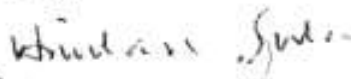
(7) Commutation of Pension :

Pensioners who retired / voluntarily retired on or after 01.04.2007 shall have an option to commute the amount of pension that has become additionally commutable on account of retrospective revision in pay / pension. On exercise of such option for additional commutation of pension of those retirees including voluntary retirees, the revised commutation table will be followed for computation of the additional amount of pension consequent upon revision of pension as already communicated vide Office Order No.127 dated 02.06.2009.

Other provisions governing grant of relief to pensioners not mentioned in this Order, such as regulation of relief during re-employment, regulation of relief where more than one pension is drawn, commutation of pension, determination of family pension, weightage towards qualifying service etc. as in existence, will remain unchanged.

WBSEB Employees' (Death-cum-Retirement Benefit) Regulations, 1985 shall be deemed to have been modified to the above extent only and Orders, Circulars etc., if any, issued prior to the date of issue of this Order shall continue to remain operative in so far those are not inconsistent with and/or contradictory to the provisions made herein.

This has approval of the Chairman & Managing Director.


(Anirban Guha)
Director (HR)

Memo No.

Dated :

Distribution :